



Bill Number: S.B. 1635

Kavanagh Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that a person commits *unlawful alerting of another person to avoid arrest* if the person hinders, delays or prevents the lawful arrest of a specific person, rather than any person, by knowingly communicating prescribed information.
2. Specifies that *unlawful alerting* only applies to a real-time, imminent effort by law enforcement to execute an arrest, rather than an ongoing effort by law enforcement.
3. Makes technical changes.

KAVANAGH FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1635
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 25, Arizona Revised Statutes, is
3 amended by adding section 13-2515, to read:

4 13-2515. Unlawful alerting of another person to avoid arrest;
5 classification; definitions

6 A. A PERSON COMMITS UNLAWFUL ALERTING OF ANOTHER PERSON TO AVOID
7 ARREST IF THE PERSON, WITH THE INTENT TO HINDER, DELAY OR PREVENT THE
8 LAWFUL ARREST OF THE OTHER [SPECIFIC] PERSON, KNOWINGLY COMMUNICATES
9 INFORMATION TO [THE] [THAT] OTHER PERSON THAT ALERTS OR WARNS [THE]
10 [THAT] OTHER PERSON OF A REAL-TIME, IMMINENT [OR ONGOING] EFFORT TO ARREST
11 [THE] [THAT] OTHER PERSON BY A LOCAL, STATE OR FEDERAL LAW ENFORCEMENT
12 OFFICER.

13 B. THIS SECTION DOES NOT APPLY TO:

14 1. AN ATTORNEY WHO PROVIDES LAWFUL LEGAL ADVICE TO THE ATTORNEY'S
15 CLIENT.

16 2. A PERSON WHO PROVIDES INFORMATION IN RESPONSE TO A LAWFUL
17 REQUEST BY A LOCAL, STATE OR FEDERAL LAW ENFORCEMENT OFFICER.

18 3. A PERSON'S COMMUNICATION THAT IS MADE WITHOUT KNOWLEDGE THAT THE
19 PERSON WARNED IS THE SUBJECT OF AN ARREST.

20 4. A PERSON'S COMMUNICATION THAT IS MADE WITHOUT THE INTENT TO
21 HINDER, DELAY OR PREVENT THE LAWFUL ARREST OF ANOTHER [SPECIFIC] PERSON.

22 C. THE ATTORNEY GENERAL OR THE COUNTY ATTORNEY OF THE COUNTY IN
23 WHICH THE OFFENSE OCCURS MAY PROSECUTE VIOLATIONS OF THIS SECTION.

24 D. UNLAWFUL ALERTING OF ANOTHER PERSON TO AVOID ARREST IS A CLASS 1
25 MISDEMEANOR.

26 E. FOR THE PURPOSES OF THIS SECTION:

27 1. "COMMUNICATES" INCLUDES:

28 (a) AN ELECTRONIC COMMUNICATION.

29 (b) A GESTURE.

1 (c) ~~[A]~~ VERBAL ~~[STATEMENTS]~~ ~~[STATEMENT]~~.
2 (d) ~~[SIGNALS]~~ ~~[A SIGNAL]~~ OR THE USE OF AMPLIFIED SOUNDS~~[.]~~ BELLS,
3 WHISTLES OR SIMILAR DEVICES WHEN USED AS INTENTIONAL SIGNALING.
4 (e) A WRITTEN MESSAGE.
5 (f) ANY OTHER METHOD OF CONVEYING INFORMATION THAT IS NOT LISTED IN
6 SUBDIVISION (a), (b), (c), (d) OR (e) OF THIS PARAGRAPH.
7 2. "IMMINENT OR ONGOING EFFORT TO ARREST":
8 (a) MEANS A LAW ENFORCEMENT ACTIVITY THAT OCCURS CONTEMPORANEOUSLY
9 WITH OR IMMEDIATELY PRECEDING AN ATTEMPT TO TAKE A PERSON INTO CUSTODY.
10 (b) INCLUDES SURVEILLANCE, APPROACH, PURSUIT OR EXECUTION OF AN
11 ARREST WARRANT BY A LAW ENFORCEMENT OFFICER.
12 3. "INTENTIONAL SIGNALING" MEANS A PERSON'S DELIBERATE USE OF
13 SOUND, LIGHT, MOVEMENT OR OTHER CONDUCT THAT IS MADE FOR THE PURPOSE OF
14 CONVEYING A WARNING TO OR ALERTING ANOTHER PERSON.
15 4. "LAW ENFORCEMENT OFFICER" MEANS AN INDIVIDUAL WHO IS AUTHORIZED
16 BY LAW TO ENGAGE IN OR SUPERVISE THE PREVENTION, DETECTION, INVESTIGATION
17 OR ENFORCEMENT OF LAWS AND WHO IS EMPLOYED BY OR ACTING ON BEHALF OF A
18 LOCAL, STATE OR FEDERAL GOVERNMENTAL ENTITY.
19 5. "LAWFUL ARREST" MEANS AN ARREST THAT IS SUPPORTED BY LEGAL
20 AUTHORITY AND PROBABLE CAUSE EVEN IF A WARRANT HAS NOT BEEN ISSUED.
21 Sec. 2. Severability
22 If a provision of this act or its application to any person or
23 circumstance is held invalid, the invalidity does not affect other
24 provisions or applications of the act that can be given effect without the
25 invalid provision or application, and to this end the provisions of this
26 act are severable.

27 Enroll and engross to conform
28 Amend title to conform

JOHN KAVANAGH

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